

Whangarei District Council Meeting

Supplementary Agenda

Date: Thursday, 28 August, 2025

Time: 9:00 am

Location: Civic Centre, Te Iwitihi, 9 Rust Avenue

Elected Members: His Worship the Mayor Vince Cocurullo
Cr Gavin Benney
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

For any queries regarding this meeting please contact the Whangarei District Council on (09) 430-4200.

6. Decision Reports / Whakatau Rīpoata

6.16 Funding Agreement with Forum North Trust

3

6.16 Funding Agreement with Forum North Trust

Meeting: Whangarei District Council
Date of meeting: 28 August 2025
Reporting officer: Aaron Taikato – General Manager, Strategy & Democracy

1 Purpose / Te Kaupapa

This item involves receiving funding for delivering specific components related to the lyric theatre within a wider complementary programme of work. The proposed funding and associated spend will be subject to a funding agreement (Attachment 1).

The purpose of this report is to:

- update Elected Members on the proposed funding agreement with Forum North Trust; and
- seek approval of additional operational spend which will be offset by external income from Forum North Trust.

2 Recommendations / Whakataunga

That the Council:

1. Receives the report.
2. Approves additional operational spend of \$200,000 plus GST in the 2025-26 financial year which will be offset by external income from Forum North Trust.
3. Approves the funding agreement between Whangarei District Council and Forum North Trust (Attachment 1).

3 Background / Horopaki

Whangarei District Council (Council) is currently exploring options for the Forum North building and the wider area as part of the development of a Knowledge Precinct Plan, the Knowledge, Education and Arts (KEA) Hub and the Knowledge Precinct Programme Management.

Forum North was established in 1981 and has long served as a civic and cultural venue for the Whangārei community. The currently proposed Lyric Theatre aligns with this legacy, continuing the vision of Forum North as a place for community, creativity and connection.

Due to the overlap of the Precinct Plan, the KEA Hub, investigations and investments relating to Forum North, and various other projects still being identified within the boundary of the Precinct Plan, Council initiated a Programme to help coordinate these projects under a single banner.

A “programme” is language used within Council’s Investment Management Framework (IMF) and is broadly defined as a structure comprised of multiple related projects and non-project activities completed in tranches to deliver integrated outcomes or benefits. The potential

location of a purpose-built lyric theatre, and integration with other proposed uses forms a key part of that work.

Council has provided capital expenditure for the lyric theatre in the 2024-2034 Long Term Plan (LTP) and are committed to progressing this project.

In 2022, Te Pūkenga expressed interest in securing space at the Forum North site. As part of the initial discussions, there was an indication that the development of a Lyric Theatre by Council could form part of the broader agreement. However, Te Pūkenga was unable at the time to provide a tangible proposal or plan to progress the arrangement. In the absence of a firm commitment, proceeding with the Lyric Theatre development would have exposed Council to significant unbudgeted costs. Consequently, the proposal was not pursued. It was noted that a potential alternative solution may be brought back to Council for consideration should it be developed further.

Operational department budgets and project budgets fund the Knowledge Precinct Plan development. In order to maintain momentum for the development of the Knowledge Precinct Plan and to increase momentum for the development of a lyric theatre, the Forum North Trust (the Trust) has proposed to provide funding of \$200,000 plus GST to Council to contribute toward the initial location options, design and costing phases of a lyric theatre.

The Trust is committed to providing Whangārei a redesigned community performing arts and events centre at Forum North including a new large lyric theatre, inclusive programming, educational opportunities and productions and events of the highest standard. In conjunction with the current facilities at Forum North, the Trust believes that a performing arts and events centre will enhance the artistic and cultural identity of Whangārei, greatly benefitting the Central Business District, the local and regional economy and become a venue to attract performances of any scale and events of every nature. Whilst Forum North is the location that the Trust are working towards at the present time, the Trust is open to considering alternative locations pending outcomes of initial investigations.

Council will need to undertake public consultation on options regarding the Knowledge Precinct Plan, strategic assets, significant investment, agreements with partners and any potential sale or use of public land. The Trust acknowledges these are responsibilities of the Council.

4 Discussion / Whakawhiti kōrero

4.1.1 The funding will be used to procure professional services related to the lyric theatre.

Specific deliverables of the agreement are outlined below:

Bulk & servicing requirements of the theatre	Engaging professionals to develop the specifications and calculations related to the lyric theatre including but not limited to: ➤ Overall building bulk footprint and estimated gross floor area ➤ Outdoor area needs ➤ Servicing and accessway requirements
---	--

	This deliverable will inform the siting of the theatre in context of wider major precinct components and also the wider Knowledge Precinct Plan.
Pause point for the decision-making on-site location ahead of the subsequent deliverable of detailed theatre design being finalised.	
Develop concept theatre design	Engaging suitably qualified professionals to develop concept design and architectural plans for the lyric theatre.
Theatre costings	Costings for the proposed design of the lyric theatre.

4.1.2 The location of the lyric theatre is a key part of the Knowledge Precinct Plan which is progressing well.

Since the second-half of 2024, Council staff and consultants, have been developing draft components of the Precinct Plan. Key steps undertaken so far include:

- Spatial Analysis – an urban design and landscape context analysis including cultural landscape.
- Strategic Framework Analysis – a review of all relevant Council documents that relate to the precinct, looking at structure and commonality of how they present their strategy component, and relevant actions or points to the site.
- Early engagement phases – workshops with Elected Members, the Project Steering Board, Council staff, hapū members and Council's Youth Advisory Group. The workshops covered two topics. Firstly, being about what opportunities and issues are identified within the site. The second being a further exploration of draft key moves.
- Development of a draft Strategic Framework including Vision, Values, Outcomes and Key Moves and Actions.
- Public engagement
- Specific landowner engagement of all sites within the Precinct so they are informed and have the opportunity to participate.

An engagement report will be presented to Elected Members in September 2025. In the coming months, staff will propose a completed Draft Knowledge Precinct Plan for formal consultation ahead of adoption.

The Precinct Plan is part of a wider programme of work which is progressing. Pending revised Council budgets key steps for the next few months of the programme are:

- MoSCoW prioritisation analysing initiatives within the programme according to: must-have, should-have, could-have, and won't-have, or will not have right now.
- Masterplan brief and masterplan options (Theatre led vs Precinct led vs City led)
- Economic wellbeing analysis
- Viability & Market lens
- Economic case, delivery and programme business case
- Delivery strategy

The deliverables outlined in section 4.1.1 will help inform the masterplan options that Council will need to consider. Meanwhile the above steps will help inform the deliverables necessary for the progress of the lyric theatre such as the development of the business case.

4.1.3 Financial/budget considerations

Operational expenditure and capital expenditure within the Precinct projects and programme are included across several budgets for the term of the LTP. Below are some of the key budget lines related to this agenda.

4.1.3.1 Knowledge Precinct Plan and Programme Management

Through the LTP and subsequent decisions, Council allocated \$294,350 operational expenditure (Year 2) and \$353,425 (Year 3) toward technical reports. This resourcing funds the following: Preparation of the Precinct Plan (master plan options and final spatial plan);

- Delivery considerations
- Business case development
- Programme management
- External independent advisory services for the Project Steering Board

The Year 2 operational expenditure budget is pending any budget adjustments needed to absorb \$5million of operational expenditure resulting from Annual Plan 2025-26 decisions.

4.1.3.2 Forum North / Lyric theatre

\$131,450 OPEX	Year 2	To support the next steps of investigations for a new lyric theatre. This resourcing funds project management services specific to the lyric theatre, completion of a feasibility study and sustainable operating model of a new lyric theatre.
\$7,258,065 CAPEX	Years 4-10	New community theatre funding. Release is contingent on significant external fundraising.
\$11,688,350 CAPEX	Years 3-10	Forum North Redevelopment

The decision requested in this report is to approve additional operational expenditure in the 2025-26 financial year of \$200,000 plus GST equal to the amount of the external funding provided by Forum North Trust. There is no net impact to Council, although the timing of revenue recognition and receipt will be dependent on the terms of the funding agreement and may differ to the timing of the expenditure.

4.1.4 Policy and planning implications

The resourcing and associated spend is aligned with existing strategic direction and long-term investment decisions made through the current and previous LTP.

More specifically, the Knowledge Precinct Plan is the fourth and final precinct plan to be actioned under the Whangarei City Centre Plan 2017. Council has committed to a programme of work to organise and manage the overlap of the Precinct Plan, the KEA Hub, investigations and investments relating to Forum North, and various other projects still being identified within the boundary of the Precinct Plan. Forum North and also the Lyric theatre have funding allocated through the LTP as outlined in section 4.1.5.

4.1.5 Options

Option	Pros	Cons
<u>Option 1</u> Accept the resourcing, approve the Funding Agreement and approve the associated increase in spend.	The sharing of information will support better alignment and momentum on key components of the Knowledge Precinct Plan. Council will eventually require information from the deliverables for the Funding Agreement to inform future decision making such as undertaking public consultation on masterplan options and to release planned capital expenditure. The resourcing enables Council to access information about options for Forum North that the current budget does not cover. The financial commitment by the Trust at this early stage demonstrates the buy-in of the Trust which could be important from the perspective of ratepayers.	Additional workload for staff for communicating with the Trust and external consultants and planning and delivering procurement processes. Perceived obligations on both parties – addressed in section 4.1.8 below.
<u>Option 2</u> Decline the resourcing, decline the Funding Agreement and approve associated increase in spend.	The Trust can spend the resourcing on other relevant deliverables. Less likelihood of perceived obligations on both parties – addressed in section 4.1.8 below.	Unbudgeted operational spend for Council in a tight fiscal environment. Additional workload for staff for communication with the Trust and external consultants and planning and delivering procurement processes.
<u>Option 3</u> Decline the resourcing, decline the Funding Agreement and maintain the existing budget commitments.	The Trust can procure the services themselves without constraint of Council procurement process which may save them time. Reduced staff time required to plan and deliver procurement processes.	There may be damage to relationships with the Trust. Council will eventually require information from the deliverables for future decision making such as undertaking public consultation on masterplan options and to release planned capital expenditure.

		The current resourcing will be insufficient so deliverables will need to be timed (delayed) to align with budget availability across financial years.
--	--	---

Staff recommend **Option 1:** Accept the resourcing, approve the funding agreement and approve associated increase in spend.

4.1.6 Risks

- 1) A funding agreement creates the appearance of obligation or commitment. The mitigation to that is the agreement explicitly states that it does not. The reason to proceed with the agreement in the face of the appearance of obligation is the benefit and interrelatedness the deliverables have to the Knowledge Precinct Plan and the wider programme.
- 2) While the resourcing the work of consultants, there is still additional work required of staff such as procurement, communication with external consultants. However, this is likely work that would need to be done eventually anyway and informs a better output for the Knowledge Precinct Plan. The contract will be managed by an external project manager with the necessary skills and contacts within the KEA and wider programme to guide a suitable outcome that is jointly beneficial.
- 3) The existing operational budget is insufficient for the necessary work. This is mitigated by the funding agreement, a good working relationship and the interrelatedness of the outcomes. It is beneficial to both parties to make this work.
- 4) Should there be a dispute or breakdown in relationships between the Parties, there are mitigations within the agreement to address such circumstances.

5 Significance and engagement / Te Hira me te Arawhiti

The decisions or matters of this specific Agenda do not trigger the significance criteria outlined in Council's Significance and Engagement Policy, and the public will be informed via agenda publication on the website. Whangarei District Council has undertaken early public engagement for the development of the Knowledge Precinct Plan. Further formal public consultation will also be required on options regarding the Knowledge Precinct Plan, strategic assets, significant investment, agreements with partners and any potential sale or use of public land.

6 Attachments / Ngā Tāpiritanga

Attachment 1: Funding Agreement between Forum North Trust and Whangarei District Council

Funding Agreement

Between	Forum North Trust	(the Trust)
And	Whangarei District Council	(Council)

Together **‘the Parties’**

Background

- A. The Forum North Trust is a group of passionate civic-minded people committed to providing Whangārei a redesigned community performing arts and events centre at Forum North including a new large lyric theatre, inclusive programming, educational opportunities and productions and events of the highest standard.
- B. In conjunction with the current facilities at Forum North, Forum North Trust believes that a performing arts and events centre will enhance the artistic and cultural identity of Whangārei, greatly benefitting the Central Business District, the local and regional economy and become a venue to attract performances of any scale and events of every nature.
- C. Whangarei District Council is currently exploring options for the Forum North building and the wider area as part of the development of a Knowledge Precinct Plan. The potential location a purpose-built theatre, and integration with other proposed uses forms a key part of that work.
- D. Whangarei District Council have provided funding for the lyric theatre in the 2024-2034 Long Term Plan and are committed to progressing this project.
- E. The Forum North Trust has agreed to provide funding of \$200,000 plus GST to Whangarei District Council to contribute toward the initial location options, design and costing phases of the proposed lyric theatre.
- F. Whangarei District Council will need to undertake public consultation on options regarding the Knowledge Precinct Plan, strategic assets, significant investment, agreements with partners and any potential sale or use of public land. The Forum North Trust acknowledges these responsibilities of the Whangarei District Council.

AGREEMENT

1. The Parties agree as follows:

- 1.1. Forum North Trust (the Trust) will provide the Whangarei District Council (Council) with the sum of up to \$200,000 plus GST towards the design of the lyric theatre within the Knowledge Precinct (the Design Phase).
- 1.2. Payment will be made in two 50% instalments: the first upon signing, and the second upon completion of the design phase, from the Trust to Council's nominated bank account, and initiated upon receipt of a Tax Invoice.
- 1.3. The Parties acknowledge that the completion of the Design Phase does not create any obligation or commitment by either Party to proceed with the construction of the lyric theatre. The Parties further acknowledge that any decision to proceed with construction will be subject to separate processes, including but not limited to: securing future funding, undertaking public and stakeholder consultation, obtaining necessary consents and approvals, and satisfying any other statutory or procedural requirements.

2. Purpose of funding

- 2.1. The funding will be used to engage suitably qualified professionals to provide:
 - 2.1.1. information required to inform:
 - a. a suitable location for the lyric theatre amongst wider major precinct actions, noting this work and the recommended location is carried out under the Knowledge Precinct Plan work;
 - b. the concept design, concept and master plan for the proposed lyric theatre; and
 - c. costings for the proposed design of the lyric theatre.

2.2. Specific deliverables of the agreement within the wider Knowledge Precinct Plan project are outlined below:

Stage	Task	WDC		Forum North Trust	External consultant team	
		General Managers: Community and Strategy & Democracy	Strategy Department & consultants		Project Manager	Theatre Consultant/s
1	Bulk & servicing requirements of the theatre	Review	Input and collaborate	Approve	Specify and monitor	Develop & Lead
2	Siting requirements.	Approve	Develop & Lead	Input and collaborate	Input and collaborate	Input and collaborate
3	Knowledge Precinct Plan.	Approve	Develop & Lead	Input and collaborate	Input and collaborate	Input and collaborate
4	Concept theatre design.	Input and collaborate	Input and collaborate	Specify and monitor	Specify and monitor	Develop & Lead
5	Theatre costings	Input and collaborate	Receive	Specify and monitor	Specify and monitor	Develop & Lead

2.3. Specific deliverables of the agreement are outlined below:

2.3.1. Stage 1 Bulk & servicing requirements of the theatre

Engaging suitably qualified professionals to develop the specifications and calculations related to the proposed lyric theatre including but not limited to:

- a. Overall building bulk footprint and estimated gross floor area;
- b. Outdoor area needs
- c. Servicing and accessway requirements

This deliverable will inform the siting of the theatre in context of wider major precinct components and also the wider Knowledge Precinct Plan.

Following the delivery of Stage 1 Bulk & servicing requirements of the theatre, there will be a pause point for the decision-making on-site location ahead of the subsequent deliverable of Stage 4 Detailed theatre design being finalised.

2.3.2. Stage 4 Develop concept theatre design

Engaging suitably qualified professional(s) to develop concept design and architectural plans for the proposed lyric theatre.

2.4. The deliverables within 2.3 will be facilitated by a project manager contracted by Council separately.

3. Role and function of the Trust

3.1. As a condition of providing funding, the Trust will be recognised as a key stakeholder in the design phase of the lyric theatre project. In this role, the Trust will:

- 3.1.1. Participate in procurement and project planning discussions in an advisory capacity and will receive all relevant documentation in a timely manner.
- 3.1.2. Notes that Council retains sole decision-making authority.
- 3.1.3. Receive regular written updates on the progress of the design phase, including milestones, risks, and budget status; and
- 3.1.4. Be formally acknowledged as a key stakeholder in all relevant project documentation and communications.

4. Council's responsibilities

4.1. As a condition of receiving funding from the Trust, Council agrees to:

- 4.1.1. Comply with all applicable laws, regulations, rules and professional codes of conduct and practice.
- 4.1.2. Through separately procured project management services, ensure that the design phase of the project is carried out:

- a. Promptly with due diligence, care and skill, and in a manner that meets or exceeds best practice; and
 - b. By appropriately trained, qualified, experienced and supervised person/s.
 - c. In a manner that is integrated with other considerations relating to the Knowledge Precinct planning currently being undertaken by Council.
- 4.1.3. Notify the Trust of any material changes to the project scope, timeline or budget.
- 4.1.4. Ensure that all agreements it enters into with a third-party contractor or any other party in connection with the Design Phase follow Council procurement processes, provide value for money and do not give rise to any Conflict of Interest.
- 4.1.5. Notify the Trust of any risks including potential for budget overspend.

5. Funding, records and auditors

- 5.1. Council will receive and manage all funding in accordance with good financial management and accounting practices and to a high standard that demonstrates the appropriate use of the funding provided.
- 5.2. Council will keep full and accurate records of the expenditure of the funding sum.

6. Return of money not expended

- 6.1. If any portion of the funding remains unspent upon completion of the Design Phase or termination of this Agreement, Council must return the unspent amount to the Trust within 30 days of the completion or termination date, unless otherwise agreed in writing.
- 6.2. Partial returns or reallocations of funds may be agreed upon by mutual consent. Any such agreement must be made in writing and confirmed within 30 days of the completion or termination of the Design Phase.

7. Budget overspend

- 7.1. Acknowledging the uncertainty surrounding the deliverables, should the deliverables be overspent and require additional resourcing to complete, both parties will work together to identify potential funding options prior to agreeing to an overspend.

8. Guarantee/Warranty

- 8.1. Council warrants that it will use the funding solely for the purposes outlined in this Agreement and that all services procured under this Agreement will be performed with reasonable care, skill, and diligence in accordance with best industry practice.

9. Term and Termination

- 9.1. The Agreement will start on the date that it has been signed by both parties and will remain in force until the End Date unless terminated in accordance with this Agreement.
- 9.2. There is no set period for completing the Design Phase but it is reasonably expected to be completed within 2 years from the date of this Agreement (1 September 2025).
- 9.3. Either Party may terminate this Agreement immediately by written notice to the other Party if the other Party:
 - 9.3.1. commits a material breach of any term of this Agreement and fails to remedy the breach within 20 business days of receiving written notice requiring it to do so;
 - 9.3.2. becomes insolvent, enters into liquidation, or has a receiver or statutory manager appointed over any of its assets; or
 - 9.3.3. engages in conduct that, in the reasonable opinion of the terminating Party, brings or is likely to bring the project or either Party into disrepute.
- 9.4. Termination of this Agreement is without prejudice to the rights and obligations of the Parties accrued up to and including the date of termination.
- 9.5. Upon termination, should there be an ongoing contract with a Supplier for work included in this agreement, then:
 - 9.5.1. Both parties must equally split the cost of completion of the work based on evidence of invoicing; OR
 - 9.5.2. As the contract holder, Council may choose to end the relevant contract in accordance with the terms and conditions of the contract and both parties must equally split the cost of delivered to date based on evidence of invoicing.
- 9.6. Upon termination, all partially completed work and intellectual property created up to the date of termination shall remain the property of the Trust. The Council shall retain access rights to such materials for non-commercial purposes related to the Lyric Theatre project, as outlined in Clause 12.2.

10. Regulatory Function

- 10.1. This Agreement does not bind Council as a regulatory authority, and any consent or agreement given under this Agreement is not an agreement or consent in Council's regulatory capacity, and vice versa. When acting in its regulatory capacity, Council may consider all applications to it without regard to this Agreement.

11. Standards and compliance with laws

- 11.1. Council will comply with all applicable laws, regulations, rules and professional codes of conduct or practice. This includes compliance with the decision-making requirements of the Local Government Act 2002.

12. Intellectual Property Rights

- 12.1. All design documents, drawings, specifications, and other materials created through deliverables identified in section 2.3 of this agreement shall be the property of the Trust provided full and final payment is complete for any outstanding invoices.
- 12.2. Council shall have the right to access, use, and reproduce the design documents for Council related purposes.

13. Public Acknowledgment

- 13.1. Council agrees to acknowledge the contribution of the Trust in all public communications, media releases, and promotional materials relating to the Lyric Theatre Design Phase.

14. Confidentiality

- 14.1. Each party agrees to keep confidential all information disclosed by the other party that is marked as confidential or would reasonably be considered confidential, except where disclosure is required by law or with the other party's written consent.

15. Force Majeure

- 15.1. Neither party shall be liable for any failure or delay in performing its obligations under this Agreement if such failure or delay is due to an event beyond its reasonable control, including but not limited to natural disasters, pandemics, acts of war, or government restrictions. The affected party must notify the other party as soon as practicable and take reasonable steps to mitigate the impact.

16. Liability and Insurance

- 16.1. Council shall maintain appropriate insurance coverage for all activities related to the Design Phase, including professional indemnity and public liability insurance. Each party shall be responsible for its own acts and omissions and shall indemnify the other against any claims arising from its breach of this Agreement or negligence.

17. Dispute Resolution

- 17.1. In the event of a dispute, the parties agree to first attempt to resolve the matter through good faith negotiations. If unresolved within 30 days, the dispute shall be referred to mediation administered by an agreed-upon independent mediator. If mediation fails, the dispute may be referred to arbitration or the appropriate court.

18. Amendments

18.1. This Agreement may be amended only by mutual written agreement of the Parties.

19. Notices

19.1. Any notice or other communication required or permitted under this Agreement must be in writing and will be deemed to have been duly given when delivered personally, sent by registered mail, or sent by email to the addresses specified by the Parties.

20. Entire Agreement

20.1. With the exception of the existing Memorandum of Understanding between the Parties, this Agreement constitutes the entire agreement between the Parties and supersedes all prior agreements, understandings, negotiations, and discussions, whether oral or written, between the Parties.

21. No Partnership or Agency

21.1. Nothing in this Agreement shall be deemed to create a partnership or agency relationship between the Parties. Neither Party shall have the authority to act as agent for, make representations on behalf of, or to bind, the other Party in any way.

22. Communications and No Surprises

22.1. Neither Party shall make any public statement, media release, or other form of public communication relating to this Agreement or the Lyric Theatre Design Phase without first consulting the other Party and obtaining their prior written approval. This includes, but is not limited to, press releases, interviews, social media posts, and public announcements. Each Party agrees to act reasonably and in good faith when considering such requests and to ensure that any public communications accurately reflect the nature and status of the project and the Parties' respective roles.

22.2. Each Party agrees to act in good faith and to keep the other Party informed in a timely manner of any material developments, risks, or issues that may affect the Design Phase of the lyric theatre project. The Parties will use reasonable endeavours to avoid unexpected actions or decisions that could materially impact the other Party without prior consultation.

23. Execution Format

23.1. This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

23.2. The parties agree that this Agreement may be signed electronically, and such electronic signatures shall be deemed to be valid and binding.

Execution

Dated this _____ day of _____ 2025

Name

On behalf of Forum North Trust

Name

On behalf of Whangarei District Council

RESOLUTION TO EXCLUDE THE PUBLIC**Move/Second**

That the public be excluded from the following parts of proceedings of this meeting.

The general subject of each matter to be considered while the public is excluded, the reason for passing this resolution in relation to each matter, and the specific grounds under Section 48(1) of the Local Government Official Information and Meetings Act 1987 for the passing of this resolution are as follows:

General subject of each matter to be considered		Reason for passing this resolution in relation to each matter	Ground(s) under Section 48(1) for passing this resolution
1.1	Confidential Minutes Whangarei District Council 24 July 2025	Good reason to withhold information exists under Section 7 Local Government Official Information and Meetings Act 1987	Section 48(1)(a)
1.2	Chair's Report – August 2025		
1.3	Approval of Procurement Plan		
1.4	Storm Water Project		
1.5	Property Update		
1.6	Amendments to Trust Deed		

This resolution is made in reliance on Section 48(1)(a) of the Local Government Official Information and Meetings Act 1987 and the particular interest or interests protected by Section 6 or Section 7 of that Act which would be prejudiced by the holding of the whole or the relevant part of the proceedings of the meeting in public, are as follows:

Item	Grounds	Section
1.1	For the reasons stated in the open minutes	
1.2	To protect information where the making available of the information would be likely unreasonably to prejudice the commercial position of the person who supplied or it the subject of the information. To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations).	Section 7(2)(b)(ii) Section 7(2)(i)
1.3	To enable Council to carry on without prejudice or disadvantage commercial activities.	S7(2)(h)
1.4	To enable Council to carry on without prejudice or disadvantage commercial activities. To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations)	S7(2)(h) S7(2)(i)

1.5	To enable Council to carry on without prejudice or disadvantage negotiations (including commercial and industrial negotiations). To prevent the disclosure or use of official information for improper gain or improper advantage.	S7(2)(i) S7(2)(j)
1.6	To maintain legal professional privilege	S7(2)(g)

Resolution to allow members of the public to remain

If the Council wishes members of the public to remain during discussion of confidential items the following additional recommendation will need to be passed:

Move/Second

“That _____ be permitted to remain at this meeting, after the public has been excluded, because of his/her/their knowledge of Item _____.

This knowledge, which will be of assistance in relation to the matter to be discussed, is relevant to that matter because _____.

Note: Every resolution to exclude the public shall be put at a time when the meeting is open to the public.